

Election

1. The general election is held on the basis of adult suffrage.
2. Every person who is a citizen of India and not less than 18 years of age is entitled to vote at the election, provided he is not disqualified by law.
3. Election to Parliament or the Legislature of a State can be called in question only by an election petition in the High Court, with appeal to the Supreme Court [Art. 329].
4. The exclusive forum for adjudicating disputes relating to the election of the President and Vice-president is the Supreme Court [Art. 71].

Election Commission

1. In order to supervise the entire procedure and machinery for election and for some other ancillary matters, the Constitution provides for this independent body [Art. 324].
2. The Election Commission is independent of executive control to ensure a fair election.
3. The Election Commission consists of a Chief Election Commissioner and two other Election Commissioners.
4. President can determine the number of Election Commissioners [Art. 324(2)].

Chief Election Commissioner (CEC)

1. The President appoints the Chief Election Commissioner who has a tenure of 6 years, or up to the age of 65 years, whichever is earlier.
2. The CEC enjoys the same status and receives the same salary and perks as available to judges of the Supreme Court.
3. The Chief Election Commissioner can be removed from his office only in a manner and on the grounds prescribed for removal of judge of the Supreme Court.
4. Other Election Commissioners can be removed by the President on the recommendation of the Chief Election Commissioner.
5. The Election Commission has the power of superintendence, direction and conduct of all elections to Parliament and the State Legislatures and of elections to the offices of the President and Vice-President {Ref.: Art. 324(1)}.

6. Regional Commissioners can be appointed by the President in consultation with the Election Commission for assisting the Election Commission {Ref.: Art. 324(4)}.

The main functions of the Election Commission are :

1. The preparation of electoral rolls before each general election and registration of all eligible voters.
2. The delimitation of constituencies.
3. The recognition of various political parties and allotment of election symbol to these parties.
4. The preparation of a code of conduct for the political parties.
5. The tendering of advice to the President regarding disqualification of the members of the parliaments etc.
6. The appointment of election officers to look into disputes concerning election arrangements.
7. The preparation of roster for central broadcasts and telecasts by various political parties.
8. Keep voters lists up-to-date at all times.
9. To issue identity cards to the voters.